

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

LOGFRET, INC., *Complainant*

v.

KIRSHA, B. V., LEENDERT JOHANNES BERGWERFF A/K/A
HANS BERGWERFF, LINDA SIEVAL, *Respondents*.

DOCKET NO. 18-10

Served: February 12, 2019

BEFORE: Erin M. WIRTH, *Administrative Law Judge*.

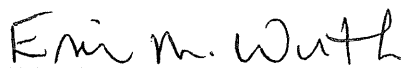
ORDER REQUIRING A SUPPLEMENT TO THE MOTION TO AMEND COMPLAINT AND GRANTING MOTION FOR SECOND EXTENSION OF TIME TO RESPOND TO MOTION TO DISMISS

On February 7, 2019, Complainant filed a motion seeking to amend the complaint and filed a motion seeking a second extension of time to respond to Respondents' motion to dismiss. Complainant indicates that Respondents object to both motions.

In the motion to amend, Complainant states that after receiving the last extension, it "learned additional information regarding the facts and circumstances surrounding the allegations in the Complaint, such that Complainant believes justice would be best served by way of a verified amendment of the original Complaint." Motion to Amend at 1. Complainant does not provide any additional information about how the complaint would be amended and does not attach a proposed amended complaint. Without additional information about the amendment that is sought, it is not possible for Respondents to effectively respond to the motion or for the undersigned to properly rule on the motion. Accordingly, it is hereby **ORDERED** that Complainant file a supplement to the motion to amend by February 20, 2019. The supplement shall include the proposed amended complaint and a memorandum of law supporting the motion to amend. Respondents' opposition is due March 7, 2019. Complainant may file a reply by March 14, 2019.

In the motion seeking a second extension to respond to the motion to dismiss, Complainant states that "litigating the Motion to Dismiss at this juncture in time would not be in the interests of the parties or of judicial economy." Motion at 1. In their opposition to the motion to amend, Respondents should address the impact, if any, the proposed amendment would have on their motion to dismiss. Accordingly, it is hereby **ORDERED** that Complainant's motion to extend the time to respond to Respondents' motion to dismiss be granted.

The parties are reminded that every document filed with the Commission, including motions and exhibits, should have page numbers on each page so that citations are accurate.



Erin M. Wirth
Administrative Law Judge